

complaint

B, a residents association, complains that Aviva Insurance Limited ('Aviva') only partially accepted a claim made for storm damage under its insurance policy.

background

B made a claim late in 2015 for damage to the roof of its block of flats following a storm. Tiles had been dislodged and there was damage to the felt and battens underneath.

After asking a surveyor for their opinion, Aviva accepted the damage to the tiles was caused by the storm and paid the repair costs (minus the excess). But it said the damage to the felt and battens had been caused by wear and tear, which is excluded under the policy. So it wouldn't pay anything further.

B disagreed, saying the felt was punctured by the tiles during the storm. Aviva reviewed the claim again, but reached the same conclusion. Unhappy with this, B referred its complaint to us.

Our investigator thought that Aviva had acted fairly in only paying part of the claim. B disagreed, saying the damage to the felt and battens wouldn't have occurred were it not for the storm. And it's asked for an ombudsman's decision.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so I've decided Aviva's approach is fair.

I see that B was also going to claim for internal damage caused by water leaking into one of its flats following the storm. This claim wasn't pursued with Aviva as the flat's occupier sadly passed away. To confirm, I haven't considered the claim for internal damage in my decision. I'm only considering whether the damage to the felt and battens has been caused by the storm.

When looking at a claim for storm damage, there are three things that I need to consider. Only if I can answer 'yes' to all three questions would I ask Aviva to pay the claim. I'll address each in turn for B's complaint.

was there a storm?

Aviva has accepted that there was a storm, so I don't need to consider this further.

was the damage typical of storm damage?

Aviva has accepted that the damage to the tiles was caused by the storm. Damage to felt and battens isn't typical of storm damage, but I accept they could be damaged in a storm in certain circumstances.

was the damage caused by the storm in question?

B's insurance policy only covers certain things. It does cover damage caused by a one-off incident of a storm, but it doesn't cover damage built up over time that comes to light at the time of a storm. The policy is not intended to cover general maintenance issues with a property. So for me to say Aviva should pay the remaining part of the claim, I need to be satisfied that the storm was the main cause of the damage to the felt and battens.

Aviva's surveyor reviewed the damage based on the photos provided. The surveyor said the felt and battens were in a poor state of repair and had rotted over a period of time. And concluded that the storm highlighted an existing maintenance issue; it didn't cause the damage to the felt and battens.

I've looked at the photos, and they do show that the felt is crumbling and the battens appear to be in a poor condition. This would happen gradually, over time. So to me, this shows wear and tear – rather than damage caused by a single storm – in line with the surveyor's conclusions.

Based on this, I think it was reasonable of Aviva to decline the claim to repair the felt and battens because it was not caused by the storm.

my final decision

I'm sorry to disappoint B, but I'm not upholding this complaint as I think Aviva Insurance Limited's decision is reasonable.

Under the rules of the Financial Ombudsman Service, I'm required to B to accept or reject my decision before 21 November 2016.

Rowena Burke
ombudsman